

Smt. Kamlesh Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 March 2018 · Writ-C No. 9089 of 2018 · **Writ disposed of with liberty to file a fresh clause 6.15 objection; recovery stayed six weeks or until the objection is decided.**

HEADNOTE

Clause 6.15 of the U.P. Electricity Supply Code, 2005 confers a statutory right on a consumer to object to the correctness of a bill. Challenging a recovery citation issued under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 on the plea that an earlier objection had not been decided, the High Court, without examining merits or whether that objection was received, granted liberty to file a fresh 6.15 objection, directed a speaking decision in accordance with law, and kept recovery in abeyance for six weeks or until the objection was decided, whichever was earlier.

FACTUAL SUMMARY

Smt. Kamlesh Gupta sought quashing of recovery citation no. 4822 dated 15 February 2018 issued under section 5 of the Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Act, 1958 for electrical dues of Rs. 59,57,344. She said a permanent-disconnection bill for September 2013 to July 2017 had been objected to by registered post on 8 August 2017, but recovery issued without that objection being decided. The licensee's counsel denied that any such objection was on record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

billing-objection-pending-recovery

HOLDING

Clause 6.15 of the U.P. Electricity Supply Code, 2005 gives the consumer a statutory right to object to the correctness of a bill. Without examining merits, the Court permitted a fresh 6.15 objection within three weeks, directed the licensee to decide it by a speaking and reasoned order in accordance with law within two further weeks, and kept recovery on the 15.02.2018 citation in abeyance for six weeks or until that decision, whichever is earlier; failure to object in time dismisses the writ. ¶ 1

PRINCIPLE TAGS

clause-6.15-two-year-bar-mandatory-licensee-duty-to-act

Clause 6.15 of the U.P. Electricity Supply Code, 2005 confers a statutory right on a consumer to object to the correctness of a bill. Challenging a recovery citation issued under the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PD BILL AND VALIDITY OF THE RECOVERY CITATION ON MERITS

Court expressly declined to express any opinion on the merits. ¶ 1

NOT DECIDED — WHETHER THE 8 AUGUST 2017 OBJECTION WAS RECEIVED BY THE LICENSEE

Licensee denied receipt; Court granted liberty to file a fresh objection rather than deciding that dispute. ¶ 1

